700*l.*, and then assigned it to a trustee to pay 400*l.* to one, and 300*l.* to another, without an express power of signing receipts, and a *bonus* of 33*l.* was added to the policy, and the insurer being dead without a personal representative, and one of the *cestuis que trust* being also dead without a sufficient personal representative, and the other *cestui que trust* being in America, the company instituted an interpleader suit, — the Lord Chancellor of Ireland laid down the same distinction as the Master of the Rolls between a *personal debt* and money arising out of *real estate*, and held that the trustee could sign a discharge, and that the interpleader suit could not be sustained. The decision of the Lord Chancellor may have been correct, for the circumstance of one *cestui que trust* being abroad, and the other dead without a personal representative, as was also the insurer himself, may have justified the company in paying to the trustee; but the suggested distinction between pure personalty and money raised out of realty, until adopted by the English Courts, cannot be relied upon.

9. **22 & 23 Vict. c. 35.** — By a late Act it is declared that where "*purchase* or *mortgage* money *shall be* payable to a person upon any express or implied trust," and the payment is made *bonâ fide*, the receipt of the trustee "*shall* effectually discharge the person paying the same, unless the contrary *shall be* expressly declared by the instrument creating the trust" (*c*). It seems the better opinion that the clause applies only to trusts created since the Act, viz. 13*th August*, 1859, for how can a person expressly declare that an Act shall not apply when the Act itself does not exist?

10. **23 & 24 Vict. c. 145.** — By a more recent Act (*d*), the receipts of trustees for any money generally payable to them under any trust or power created by a deed, will or other instrument executed after 28*th August*, 1860, were made sufficient discharges (*e*).

[11. **44 & 45 Vict. c. 41.** — By a still more recent [*294] Act, which has repealed the last * enactment (*a*),

(*c*) 22 & 23 Vict. c. 35, s. 23.

(*d*) 23 & 24 Vict. c. 145, ss. 29, 34; and see s. 12.

(*e*) As to the doctrine of receipts generally, see *post*, ch. xviii. s. 2.

[(*a*) 44 & 45 Vict. c. 41, s. 71.]